

has the burden to produce facts *under oath*, via, for example, affidavits, declarations, or a verified complaint, that supports their claims. (*Ancora-Citronelle Corp.*, supra 41 Cal.App.3d at 148.) The Complaint is not verified. As for the declaration in support of the Motion, it fails to include any such evidence. It merely states: “Plaintiff has evidence that modification has since been made by Selene finance. Prior lender and Selene is wailing to work with plaintiff.” (Owen Decl. ¶ 3.) No additional evidence, for example the documents showing a modification, has been submitted.

Thus, on its face, Plaintiff has failed to meet her burden to produce any evidence to support her request for a preliminary injunction.

Even if the Court were to get to the weighing of the likelihood of prevailing and balancing of harms, Plaintiff has failed to meet her burden. As to the likelihood of prevailing, Plaintiff has failed to show what cause(s) of action she would likely prevail on. The Complaint is one for a preliminary and permanent injunction – i.e. for injunctive relief in general. “Injunctive relief is a remedy, not a cause of action. [Citations.] A cause of action must exist before a court may grant a request for injunctive relief.” (*Ivanoff v. Bank of America, N.A.* (2017) 9 Cal.App.5th 719, 734.)

As Plaintiff has failed to identify any cause of action at issue, she has failed to show she is likely to succeed on any of her underlying claims. If a party fails to show they are likely to succeed on the underlying claims, the Court does not address the balancing of harms. (*Butt*, supra, 4 Cal.4th at 677-678.)

Conclusion

The granting of a mandatory preliminary injunction “is not permitted except in extreme cases where the right thereto is clearly established and it appears that irreparable injury will flow from its refusal.” (*Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O’Connell*, supra, 141 Cal. 4th at 1481.)

Plaintiff has failed to meet this substantial burden. Based on the above, Plaintiff’s motion for a preliminary injunction is **denied**.

11. 9:00 AM CASE NUMBER: MSC15-01952
CASE NAME: MCGUIRE VS BRENKLE
*HEARING ON MOTION IN RE: FOR ORDER AWARDING ATTORNEY'S FEES
FILED BY: MCGUIRE, FRANK J
TENTATIVE RULING:

The court continues this matter on its own motion to Friday, May 8, 2026 at 9:00 a.m.

12. 9:00 AM CASE NUMBER: MSN13-1889
CASE NAME: RE 316 CALLE LA MONTANA, MORAGA, CA
HEARING ON PETITION IN RE: PETITION RE: UNRESOLVED CLAIM AND DEPOSIT OF SURPLUS PROCEEDS OF TRUSTEE'S ASALE
FILED BY:
TENTATIVE RULING:

Court notes notices were sent to potential claimants in advance of January 9, 2026 and no responses were received. The court ordered notices resent for the hearing date of April 10, 2026 at 9:00 a.m., and no responses were received. Some of the notices sent have been returned to the court undelivered.

Pursuant to the Unclaimed Property Law, the Court orders the transfer of unclaimed surplus funds previously submitted to the court on December 13, 1012, in the amount of **\$729,482.90** plus interest to the State Controller's Office.

The Clerk is directed to notice all parties and transmit a copy of this order to Financial Services of Contra Costa Superior Court.

13. 9:00 AM CASE NUMBER: N23-2169
CASE NAME: KARL DEBRO VS. CONTRA COSTA COMMUNITY COLLEGE DISTRICT
*HEARING ON MOTION IN RE: PEREMPTORY WRIT OF MANDATE AND MANDAMUS
FILED BY: DEBRO, KARL
TENTATIVE RULING:

Petitioner Karl Debro filed a petition for writ of mandate under Code of Civil Procedure §§ 1094.5 and 1085, along with a cause of action for declaratory relief, against Respondents Contra Costa Community College District and the